

3. **Visitor.**—On the institution of such a charity a *visitation* jurisdiction arises of common right to the founder

Witman v. Lex, 17 Serg. & R. 88; *Zeisweiss v. James*, 63 Pa. St. 469. A charity will not be allowed to fail for want of a trustee; *M'Girr v. Aaron*, 1 Pen. & W. 49; 21 Am. Dec. 361; *Levy v. Levy*, 40 Barb. 625; *Starkweather v. American Bible Soc.* 72 Ill. 58; *Heiss v. Murphey*, 40 Wis. 291. Bequest of so much as shall remain at the death of a certain person; *Mills v. Newberry*, 112 Ill. 123; 54 Am. Rep. 213; *Howard v. Carusi*, 109 U. S. 725; to dispose of for such charitable purposes as he thinks proper; *White v. Ditson*, 140 Mass. 351; 54 Am. Rep. 473; it is not material that "in trust" is not found in the bequest; *Schouler v. Peter*, 134 Mass. 426; *Nichols v. Allen*, 130 Mass. 211. A bequest may be valid but the trust void; *Shattuck v. Hastings*, 99 Mass. 23; *Drury v. Natick*, 10 Allen, 183.

Religious societies and uses.—A religious society is not a charitable corporation; *De Wolf v. Lawson*, 61 Wis. 469; 50 Am. Rep. 148. A trust to permit all white religious societies to use land for a common burying ground and no other purpose is void; *Brown v. Caldwell*, 23 W. Va. 187; 48 Am. Rep. 376; *Fairfield v. Lawson*, 50 Conn. 501; *Ayer v. Emery*, 14 Allen, 67; *Sohier v. Trinity Church*, 109 Mass. 1; *Stanley v. Colt*, 5 Wall. 119; for bequests for keeping burial lots in order, see *Bates v. Bates*, 134 Mass. 110; 45 Am. Rep. 305; *Johnson v. Holifield*, 79 Ala. 423; 58 Am. Rep. 590; *Dexter v. Gardner*, 7 Allen, 243; but see *Piper v. Moulton*, 72 Me. 155. For religious uses, see *Holland v. Peck*, 2 Ired. Eq. 255; *Ruth v. Oberbrunner*, 40 Wis. 238; *Miller v. Teachout*, 24 Ohio St. 525. A gift to the Methodists is good; *Church v. Remington*, 1 Watts, 224; to Friends or Quakers; *Price v. Maxwell*, 28 Pa. St. 23; for the distribution of religious books and reading; *Simpson v. Welcome*, 72 Me. 496; for school "wherein no books of instruction are to be used except the spelling book and the Bible"; *Tainter v. Clark*, 5 Allen, 66. Gift to pay for masses for souls is a religious use; *Rhymer's App.* 93 Pa. St. 142.

Cy pres.—America adopts the English doctrine of *cy pres* in a modified form only; *Grimes' Exrs. v. Harmon*, 35 Ind. 198. *Cy pres* has no existence in New York; *Bascomb v. Albertson*, 34 N. Y. 590; nor Kentucky; *Cromie v. Louisville Soc.* 3 Bush, 375; nor South Carolina; *Pringle v. Dorsey*, 3 Rich. N. S. 509; nor Michigan, Minnesota and Connecticut; *Hughes v. Daly*, 49 Conn. 34; *Methodist Church v. Clark*, 41 Mich. 730; *Little v. Willford*, 31 Minn. 173.

See also *Carter v. Balfour*, 19 Ala. 814; *Byers v. McCartney*, 62 Ia. 339; *State v. Warren*, 28 Md. 338; *Pearsall v. Post*, 20 Wend. 111; *Carpenter v. Miller*, 3 W. Va. 174; *Green v. Allen*, 5 Humph. 170.

For a full discussion of this doctrine, see *Jackson v. Phillips*, 14 Allen, 574; *Moore v. Moore*, 4 Dana, 354; *Wells v. Doane*, 3 Gray, 201; *Lorings v. Marsh*, 6 Wall. 337. For latitude allowed by *cy pres*, see *Marsh v. Renton*, 99 Mass. 132; *Carter v. Balfour*, 19 Ala. 814; *Atty. Gen. v. Wallace*, 7 B. Mon. 611; *Curtiss v. Brown*, 29 Ill. 201; *Henry Co. v. Winnebago, &c.* 52 Ill. 454.

Statute of uses.—The statute of 43 Elizabeth has effect in Alabama; *Johnson v. Longmire*, 39 Ala. 143. In Arkansas public charities are not governed by rules as to perpetuities; *Grissom v. Hill*, 17 Ark. 483.

The statute is in force in Connecticut; *Treat's App.* 30 Conn. 113. The local courts control in Georgia; *Walker v. Walker*, 25 Ga. 420. Statute is applied in Illinois and *cy pres* doctrine is limited; *Heuser v. Harris*, 42 Ill.